BY ORDER OF THECOMMANDER
US AIR FORCES IN EUROPE (USAFE)



USAFE INSTRUCTION 51-707
ARMY IN EUROPE Reg 550-36
COMUSNAVEUR Instruction 5840.6C

23 MARCH 2016

Law

REGULATIONS ON PERSONAL PROPERTY, LOCAL CURRENCY, AND MOTOR VEHICLES FOR U.S. PERSONNEL IN TURKEY

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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RELEASABILITY: There are no releasability restrictions on this publication.

OPR: HQ USAFE/JAI

Certified by: HQ USAFE/JA
(Col Lance Mathews)

Supersedes: USAREUR Reg 550-36,
COMUSNAVEUR Instruction 5840.6C,
USAFE Instruction 51-707, 9 March 2001

Pages: 16

This instruction implements Air Force Policy Directive 51-7, *International Law*. It establishes prohibitions concerning the disposition of duty-free personal property, and the acquisition and disposition of local currency except as provided in this instruction. It outlines requirements concerning the registration of firearms, and licensing of drivers and provides a basis for punitive action under the Uniform Code of Military Justice (UCMJ) for military personnel or administrative action, to include possible revocation of all duty-free privileges for military and civilian personnel. This instruction applies to United States Air Force, Army, Navy, Marine Corps and Air National Guard (ANGUS) and personnel according to paragraph 1.1. Certain provisions of this instruction are punitive. Violations of the specific prohibitions in paragraphs and related subparagraphs 1.2, 2.1, 2.2, 3.2, 4.1.2, 6.4.1, and 6.6, and paragraph 5 in its entirety, of this instruction by military personnel may result in prosecution under Article 92(1) and, or Article 134 of the Uniform Code of Military Justice (UCMJ). Civilian personnel are subject to disciplinary action (including loss of logistic support privileges) for violations of these paragraphs according to applicable service regulations on civilian misconduct and adverse administrative actions. Civilians may also be subject to criminal prosecution by the host nation for violation of host nation laws. This instruction supersedes all previous regulations on this topic.

For United States Air Force only: Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. It updates and establishes prohibitions concerning the disposition of duty-free personal property, and the acquisition and disposition of local currency. Clarifies and outlines the requirements concerning the registration of firearms and licensing of drivers in Turkey.

1. General:

1.1. **Applicability.** This instruction applies to all DOD military and civilian personnel, their dependents, and any other person authorized by the US Forces the privileges of the APO, Army and Air Force Exchange Service (AAFES), Navy ship's store, commissary, Class VI outlet, and currency conversion in Turkey. It also applies to those permitted under US-Turkish agreements to import into Turkey personal property free of customs duties. This directive does not apply to personnel assigned to US diplomatic and consular offices, their dependents, and US civilians not authorized by the US Forces the privileges of the APO, AAFES, Navy ship's store, commissary, class VI outlet, and currency conversion in Turkey.

1.2. **Conduct of Personal Affairs.** Persons subject to this instruction will not engage in any practices or methods in the transaction of personal business that may bring discredit upon themselves or the US Government. Specifically, they will not:

1.2.1. Sell personal property by auction or lottery or other undignified means.

1.2.2. Use their title, position or connections with US Government in disposing of personal property.

1.2.3. Engage in any business, or profession in Turkey in their own name, in the name of any other person, or entity in Turkey, except as may be authorized by the US European Command (EUCOM), US Defense Representative Turkey (USDRT) or a designee.

2. Acquisition and Disposal of Personal Property and Customs Control:

2.1. Persons subject to this instruction **will not**:

2.1.1. Sell, mortgage, loan, rent, trade, donate, deliver, or otherwise transfer to any person, or entity who does not have duty free import privileges, any item of furniture, household goods, or other personal property imported into Turkey duty free until permission of the Turkish Government has been secured and customs duties have been paid. Turkish law generally prohibits the sale of property imported into Turkey, except to other persons entitled to duty free import under the North Atlantic Treaty Organization, Status of Forces Agreement (NATO SOFA).

2.1.2. Use their position or privileges, or procure, induce, or solicit other persons to use their position or privileges, to import goods free of customs duty:

2.1.2.1. With the intent to dispose of such property for financial gain on the part of any person or entity.

2.1.2.2. With the intent to dispose of such property for the benefit of either persons or entities not entitled to duty free import privileges.

2.1.2.3. In excess of any amount reasonably necessary for the personal use of the privilege holder and authorized dependents during the privilege holder's tour of duty. The 1954 NATO SOFA Implementing Agreement restricts duty free import of personal property, household goods, and unaccompanied baggage to a period of two months before, and six months after the arrival of the individual concerned. However, based on a Turkish Government circular (Circular 2002/16 of the Min of Customs and Commerce), if a member of the force or civilian component has household goods and/or personal goods that he/she could not bring into Turkey during the first arrival due to private reasons (marriage or divorce after coming into Turkey), one of the spouses will be permitted to import them into Turkey within 6 months following the marriage or divorce decision without payment of customs taxes by taking into consideration family unity.

2.1.3. Sell, loan, rent, trade, or donate any items purchased from AAFES, Class VI outlets, Navy ship's stores, commissaries, or other duty free outlets to persons not authorized commissary and exchange privileges in Turkey. AAFES and Navy ship's store items not authorized for sale to persons with limited exchange privileges will not be sold, loaned, rented, traded, or donated to such persons.

2.1.4. Purchase property or goods from AAFES, Class VI outlets, Navy ship's stores, or commissaries, in excess of amounts reasonably necessary for the personal use of the privilege holder and that individual's authorized dependents.

2.1.5. Obtain from any source, duty free goods with the intent to dispose of such goods to persons, or entities not entitled to duty free import privileges. This includes duty free goods received via APO.

2.1.6. Abandon any unserviceable personal property imported into Turkey duty free. Beyanname items listed (attachment 2) on USAFE Form 554, **NATO Beyanname**, (customs declaration form) which are unserviceable, or of no value to the owner may be turned over to Turkish Customs and removed from the individual's Beyanname.

Personnel will contact the Customs Liaison Section to initiate removal of Beyanname items.

2.2. **Importation and Disposition of Privately Owned Motor Vehicles (POV).**

2.2.1. The duty free temporary importation of privately owned vehicles into Turkey by persons subject to this instruction is permitted solely for the personal use of authorized individuals and their dependents, and will be accomplished only according to pertinent armed forces instructions, and applicable Turkish laws.

2.2.2. Contracts to sell, mortgage, transfer, or otherwise dispose of POVs temporarily imported into Turkey free of customs duty will be accomplished according to this and other applicable military instructions and consistent with pertinent Turkish laws. Current Turkish laws prohibit the sale of vehicles temporarily imported into Turkey, except to other persons entitled to duty free import under the NATO SOFA, or to an agency of the Turkish Government under certain circumstances.

2.2.3. Subject to the provisions of this instruction, sale and transfer of possession of POVs to persons who are entitled to temporarily import an automobile free of customs duty, and who have not previously done so, may be accomplished at any time, subject to final approval by Turkish authorities. Individuals who are married are entitled to import an additional automobile free of customs duty, subject to final approval by Turkish authorities. The Customs Liaison Office will be the initial contact point and provide guidance on sale of vehicles in Turkey.

2.2.4. Persons subject to this instruction:

2.2.4.1. Will not transfer title or possession of POVs to persons not entitled to import a vehicle free of customs duty until written approval of the USDRT or a designee is secured, Turkish Customs written permission is obtained, and customs duty paid.

2.2.4.2. Will not, before consummation of sale and payment of Turkish customs duty, loan, rent, trade, donate, deliver, or otherwise transfer any privately owned vehicle to persons who do not have duty free import privileges.

2.2.4.3. Will not use, or attempt to use, a power of attorney to accomplish sale and transfer of POVs in Turkey.

2.2.4.4. Must ensure that the vehicle being sold is transferred from the seller's Beyanname to the buyer's Beyanname before the seller's departure from Turkey.

2.2.4.5. Are prohibited from consummating the sale of a vehicle in any manner other than that prescribed by the appropriate Customs Liaison Office.

2.2.4.6. Who sell a vehicle must clear the registration of the vehicle from their name at the local Traffic Bureau. No sale will be considered complete until appropriate action to clear the vehicle registration and customs has been accomplished by the seller.

2.2.4.7. Are prohibited from abandoning any unserviceable POVs imported into Turkey. POVs that are unserviceable or unusable and unrepairable after an accident may be turned over to Turkish Customs and removed from the individual's

Beyanname. Personnel will contact the Customs Liaison Office to initiate removal of Beyanname items.

2.2.5. For USAFE activities, USAFE Form 540, **Request for Transfer of POV**, will be used when transferring ownership between authorized personnel. USAFE Form 540 will be prepared in four copies and turned in to the Customs Liaison Office by seller. Customs Liaison Office will:

2.2.5.1. Forward original plus one copy to the Office of Defense Cooperation Turkey, (ODC-T) in Ankara, Turkey.

2.2.5.2. Of the remaining two copies, retain one copy in each member's (buyer's and seller's) Beyanname file.

2.2.6. The Government of Turkey does not allow a POV to be transferred from an embassy member's letter of guarantee or takrir to a NATO Beyanname.

2.3. **Importation and Exportation of Jewelry.** Personal jewelry may be imported into Turkey. If the value exceeds 15,000 US Dollars, the owner should file a customs declaration upon entry with the appropriate customs authorities. When the same jewelry is exported the owner may be required to produce the entry customs declaration.

2.4. **Customs Free Gifts to Turkish Charities and Societies.** Customs free gifts by US units and agencies to Turkish national charities such as the Red Crescent, Association for the Care of Children, Association of Disabled Veterans, and to societies established for hygienic, cultural, charitable, or social welfare purposes are authorized and encouraged; however, permission must be obtained from the Ministry of Customs and Commerce before presentation of the gift. The Customs Liaison Office will be the initial point of contact and will provide appropriate guidance.

2.5. **Commander's Responsibilities:**

2.5.1. The Commander, 39th Air Base Wing (39 ABW/CC) is responsible for reviewing annually the provisions of this instruction. Submit recommended change to HQ USAFE/JAI after coordination with other local US service commanders, the US Army Commander in Europe Contact Officer (USDRT), and the Chief of the US Diplomatic Mission.

2.5.2. US military commanders are authorized to issue supplements when considered necessary or desirable to disseminate more detailed guidance, or to impose additional restrictions when required. They may not issue supplements that will relax the restrictions, or procedures of this instruction. Units must coordinate proposed supplements applicable in Turkey with the 39 ABW Staff Judge Advocate before publication and implementation.

2.5.3. The obligations of the commander set out in paragraphs 2.5.4.1 through 2.5.4.9 constitute management obligations. Failure to comply with these management obligations does not create any rights, or benefits in any person subject to administrative or disciplinary proceeding.

2.5.4. Under the guidance of the ODC-T, other responsible commanders will:

2.5.4.1. Establish liaison with local customs officials and enforce customs policies affecting persons subject to this instruction.

2.5.4.2. Establish customs and documentation control procedures with respect to movement of persons and material by aircraft and vessel into, or out of their installations when the point of departure, or point of first intended landing is outside the national boundaries of Turkey.

2.5.4.3. Establish a central customs clearing agency to be known as the Customs Liaison Office, which will act as a clearinghouse on all matters pertaining to customs transactions.

2.5.4.4. Scrutinize sale or disposition transactions involving highly saleable items and take positive action to prevent black market sales.

2.5.4.5. Take appropriate action against all persons subject to this instruction who violate Turkish customs laws and agreements.

2.5.4.6. When appropriate, withdraw commissary, AAFES and related privileges, and decline to ship household goods until customs and related discrepancies are resolved.

2.5.4.7. Keep all personnel advised of the pertinent Turkish laws and instructions with regard to importation and exportation of personal property.

2.5.4.8. Inform personnel visiting other countries of the customs procedures in effect in those countries and Turkey.

2.5.4.9. Ensure that their personnel have read and studied this instruction, also require individuals to sign a memorandum acknowledging understanding of its provisions before delivery of household goods and issuance of AAFES and commissary privileges.

2.6. **Individual and Customs Liaison Section Responsibilities.** All persons subject to this instruction will:

2.6.1. Immediately upon arrival report to the Customs Liaison Office to initiate Beyanname paperwork. Personnel will ensure property listed in Appendix 1 is placed on their individual Beyanname. Forms to use:

2.6.1.1. For USAFE activities, Customs Liaison Office will use USAFE Form 554, for each shipment (household goods or unaccompanied baggage). USAFE Form 554 will be prepared in four copies and submitted to the local Turkish Customs Office.

2.6.1.2. After approval is granted, the Turkish Customs Office will return two copies to retain in the member's folder.

2.6.2. Customs Liaison Office will ensure that Beyanname items sold to other authorized personnel are deleted from the seller's Beyanname and added to the buyer's Beyanname.

2.6.2.1. The Customs Liaison Office will ensure that all sales transactions are properly reported to local customs authorities and recorded in the member's (buyer and seller) Beyanname file.

2.6.3. Upon discovery of the loss, theft, or destruction of Beyanname items, report immediately to the US security forces and the Turkish security/military police, to include the local area Jandarma. Ensure such events are recorded by the above authorities. The individual should bring the reports to the Local Public Prosecutor's Office. In cases where the accused is caught while in possession of the stolen items, the Prosecutor may issue a document evidencing the theft after the preliminary investigation. In other circumstances, if the prosecutor decides to forward the case to the Criminal Court with an indictment, a Turkish Judge will review the documents and decide if the property was actually stolen. If the Judge determines the property was stolen, this will relieve the individual of ownership, but will not automatically clear the individual's Beyanname. After the individual receives the letter from the Turkish Prosecutor or the decision of the Turkish Judge relieving them of ownership, he/she must take the letter to the Customs Liaison Office. The CLO will review the letter and either physically take the individual to the Turkish Customs Office or forward the letter to Turkish Customs. Turkish Customs will review the letter from the Judge and remove the item from his/her Beyanname. The individual must make every effort to recover their stolen property or have the item removed from their Beyanname. Persons are encouraged to obtain private insurance for loss, damage, and destruction of household goods and personal property.

3. Currency Control:

3.1. Importation and Exportation of Turkish Lira:

3.1.1. There is no limit on the amount of money an individual may hand-carry into Turkey. An individual leaving Turkey may only export 10,000 US Dollars (or equivalent Turkish Liras (TL) or other equivalent foreign currency) without a need for declaration to the authorities. However, if an individual declared the money upon entering Turkey, then any amount over 10,000 US Dollars or equivalent foreign currency may be taken out of the country freely. There is no limit on the amount of TL or foreign currencies imported into or exported out of Turkey through banks.

3.2. Use or Possession of Turkish and United States Currency:

3.2.1. Persons subject to this instruction **will not**:

3.2.1.1. Make payments in dollars, dollar instruments, or any other foreign currency outside of Turkey in the name of, or on behalf of, persons domiciled or ordinarily resident in Turkey, or legal entities of Turkey, except as approved by the ODC-T or its designee.

3.2.1.2. Sell or exchange Turkish Lira for dollars or dollar instruments unless:

3.2.1.2.1. Conversion is made of up to the equivalent of one month's net pay in Turkish Lira to dollars upon presentation of permanent change of station (PCS) or temporary duty (TDY) orders to a station outside Turkey to any financial services office (FSO) in Turkey.

3.2.1.2.2. Conversion is made according to applicable service instructions and directives.

3.2.2. FSO may repurchase foreign currency from individuals in exchange for US Dollars prior to their departure on home leave or after termination of their foreign assignment. In providing this service, the FSO shall ensure:

3.2.2.1. The individual presenting such currency shall submit a written application to the commander for approval of the repurchase where the amount of foreign currency exceeds the individual's salary and allowances for two biweekly pay periods.

3.2.2.2. The repurchase complies with applicable service instructions and directives.

4. Exportation of Items Purchased on the Turkish Economy:

4.1. **Exportation by Personnel Stationed in Turkey:**

4.1.1. The following restrictions apply to the exportation of personal property:

4.1.1.1. There is no limitation on the quantity or value of Turkish origin goods that may be exported out of the country by military and civilian personnel. However, upon purchase of any high-value goods of domestic or foreign origin in Turkey, a commercial invoice should be obtained from the seller and be available to present to the local Turkish Customs office upon request.

4.1.1.2. If the value of any jewelry purchased in Turkey exceeds 15,000 US Dollars, a commercial invoice should be obtained from the seller and presented to the local Turkish Custom office upon request.

4.1.2. The exportation of antiquities is prohibited. Personnel who purchase Turkish rugs and other goods that could be considered antique by customs officials should consult the local Ministry of Culture and Tourism Museum and obtain a written export report. Although many storekeepers will supply a certificate stating that an item is not an antique, this document will not necessarily preclude prosecution under the law. Personnel should be wary of any article that is obviously old as the purchase of antiques may result in criminal prosecution and confiscation of the item. The law covers goods of any description.

4.2. **Exportation by Visitors and Persons on Temporary Duty (TDY) to Turkey:**

4.2.1. Turkish laws permit foreign resident travelers to export Turkish goods as long as the quantities are reasonable and do not give the appearance the visitors or TDY personnel are engaged in a commercial activity.

5. Control of Firearms and Other Weapons:

5.1. **Control of Weapons:**

5.1.1. The possession and use of weapons, particularly firearms, is a subject of great sensitivity to both the United States and Turkish Governments. Personnel who import, acquire a firearm, or possess ammunition in Turkey must ensure that the requirements of both governments are satisfied. Turkish law prohibits the importation of firearms such as pistols and hunting rifles. Ungrooved hunting rifles such as shotguns and their ammunition are allowed though controlled. Express permission of the Ministry of Interior is required to import subject shotguns and ammunition. Base Customs Liaison Offices outside of Turkey and/or Customs Liaison Offices in Turkey are the initial points

of contact and will assist personnel desiring to import allowable firearms and ammunition into Turkey.

5.1.2. Members of the US Forces have the right to possess and carry firearms for official duty. While this right extends outside the military installation, as a matter of policy, security or military police, couriers or other military personnel outside the limits of military installations will not normally carry arms. When armed escort is required, arrangements will be made between the host country and US authorities to provide the necessary protection. In special cases where US personnel are required to be armed, the US component commander concerned will as prescribed in pertinent directives issue the use of firearms. Such directives will be coordinated with USDRT and the American Embassy before implementation. Commanders will ensure that such personnel are familiar with the firearms with which they are armed, and that they fully understand the requirements and provisions of the directive requiring the carrying of firearms.

5.2. **Shipment and Registration of Firearms.** Personnel desiring to ship allowable firearms into or out of Turkey to the CONUS must contact the area security forces or military police office and the transportation office. Detailed information on registration and shipment is available in the respective offices. These agencies have requirements that must be satisfied before firearms or ammunition may be shipped and registered.

5.3. **Rod and Gun Clubs.** Rod and gun clubs and similar organizations officially approved or sanctioned by an appropriate commander may, as single entities, purchase and acquire foreign and/or Turkish made shotguns, parts and ammunition with the permission of Turkish General Staff (TGS). Turkish law prohibits such clubs or organizations from selling foreign made firearms to their members.

5.4. **Individual Responsibility.** All persons subject to this instruction will:

5.4.1. Register all firearms within 5 days after acquisition or arrival in Turkey with the security or military police office.

5.4.2. Report the loss or theft of a firearm to the nearest security or military police office.

5.5. **Withdrawal of Firearms Registration.** Commanders will withdraw individual's AF Form 1314, when valid doubt as to the holder's reliability has been established. The commander will retain a withdrawn registration certificate until:

5.5.1. The weapon is disposed of by sale, barter, gift, or other transfer to an authorized individual.

5.5.2. The weapon is shipped or removed from the country.

5.5.3. The registration is restored to the owner by the commander or by higher authority.

5.6. **Restrictions and Limitations.** In addition to compliance with applicable service directives, persons subject to this instruction will not:

5.6.1. Possess and (or) use fully automatic weapons, except as authorized by instruction in connection with official duties.

5.6.2. Sell, rent, barter, give (as a gift), or otherwise transfer possession of a shotgun to another person, except on a proper transfer of title to a person authorized duty free import privileges. When a privately owned and registered shotgun is sold, given, or transferred

to another person, the recipient will present the bill of sale, or other evidence of transfer with the new owner's application, AF Form 1314, for registration of the shotgun. Transfers will be appropriately annotated on the corresponding USAFE Form 554.

5.6.3. Sell, rent, barter, give (as a gift), or otherwise transfer possession of any unregistered or registered firearms, except shotguns, to any person or entity.

5.6.4. Lend or borrow privately owned firearms, except for hunting or sporting purpose. Persons in possession of a borrowed firearm will carry with them a copy of the weapon's original AF Form 1314.

5.6.5. Loan firearms to persons or entities who do not have duty free import privileges.

5.6.6. Possess an unregistered privately owned firearm except while traveling to the office of registration, or while in possession of AF Form 1314.

5.6.7. Possess any of the following weapons unless required to do so in the performance of official duty:

5.6.7.1. Switchblade knives, daggers, sword canes, swords, bayonets, or grooved knives.

5.6.7.2. Blackjacks, billies, brass knuckles, sandbags, or other similar weapons.

5.6.7.3. Shooting pens (fountain pen or automatic pencil style) capable of discharging any chemical agent; for example, mace.

5.6.8. Conceal any of the following items on the person unless required to do so in the performance of official duty:

5.6.8.1. Straight razor.

5.6.8.2. Knives with blades longer than 3 inches.

5.6.8.3. Air rifles and air pistols.

5.6.8.4. Blank cartridge pistols.

5.6.8.5. Any other dangerous weapon (or any weapon that could be used in a manner to produce death or serious bodily injury).

5.7. **Carrying and Use of Privately Owned Registered Firearms.** Persons subject to this instruction will not:

5.7.1. Transport weapons that are loaded or contain a loaded clip or magazine.

5.7.2. Carry firearms or ammunition except while:

5.7.2.1. Hunting, with the appropriate host nation and or military documentation.

5.7.2.2. Participating in officially sanctioned sporting events or arms matches.

5.7.2.3. Traveling to or from:

5.7.2.3.1. Lawful sporting events or arms matches, for participation in such events or matches.

5.7.2.3.2. Authorized firing ranges or other areas where target practice or weapon adjustment is permitted, and to and from properly sanctioned activities of rod and gun clubs.

5.7.2.3.3. Repair shops or the office of registration.

5.7.2.4. Traveling officially to or from temporary, or permanent duty stations, unless specifically prohibited by appropriate orders. However, firearms and ammunition may be carried or transported outside US areas of responsibility only in conformity with applicable laws and regulations of Turkey.

6. Operation and Registration of Privately Owned Vehicles (POV):

6.1. General:

6.1.1. Unless otherwise provided in this directive, or by international agreement, all persons subject to this directive will comply with Turkish traffic laws, ordinances and regulations.

6.1.2. Commanders will establish procedures for registering all POVs (to include motorcycles and mopeds) and issue the appropriate passes to indicate the POV has been registered with the chief of security forces.

6.1.3. Pursuant to applicable service instructions and directives, Commanders, or their designees, are authorized to conduct spot inspections of vehicles in order to enforce traffic instructions.

6.2. POV Appearance and Condition:

6.2.1. All POVs should, whenever possible be inconspicuous and unostentatious. Any special marking which particularly associate POVs with US owners should likewise be removed.

6.2.2. POVs will be in the following condition:

6.2.2.1. Vehicle surface must be clean and free of rust.

6.2.2.2. Windows must be able to withstand shock and vibrations, clear (no tint), and free of cracks, stickers, signs, or advertisements.

6.2.2.3. Wipers, lights, and brakes must all be operational, in good working order, and properly adjusted.

6.2.2.4. Muffler must prevent excessive noise and not allow gas fumes inside the vehicle, and the tail pipe must point straight out (not toward ground) past the rear of the vehicle.

6.2.2.5. Engine block must have a number.

6.2.2.6. Mud flaps must be installed on all trucks, van, buses, and jeeps.

6.2.2.7. Except for motorcycles and mopeds, all POVs will be equipped with seat belts. See AFI 31-218, Air Force Motor Vehicle Traffic Supervision.

6.3. **Procedures and Requirements for Registration by Persons Stationed in Turkey:**

6.3.1. The owner will register the POV with the local Turkish Traffic Bureau. Security Forces Pass and ID will assist the owner in registering the POV. The POV must be registered within 90 days of the date of the Beyanname. Failure to do so may result in fines and/or impounding of the POV by Turkish authorities, and, or suspension of installation driving privileges.

6.3.2. To register the POV, the owner must provide the following:

6.3.2.1. SFOXI FM-30 (14 Mar 00), Tax Exemption Form approved by the Turkish General Staff.

6.3.2.2. Insurance policy (see paragraph 6.4. below).

6.3.2.3. USAFE Form 554, Customs declaration form (Beyanname).

6.3.2.4. Valid stateside driver's license and USAFE Form 181, Vehicle Operator's Permit for Turkey, or alternatively, an International Driver's license.

6.3.2.5. Turkish Lira to pay the registration fees.

6.3.3. In addition, Turkish law requires an inspection (safety and emissions) of the POV. The POV must meet the requirements set forth in paragraph 6.2.1.3 - 6.2.3.7 and as follows:

6.3.3.1. Vehicle color must match that listed on the Beyanname.

6.3.3.2. Engine block number must be legible to the inspector. (Note: If the engine block does not have a number and/or the engine does not appear on the Beyanname, contact the Security Forces for assistance in obtaining a number.)

6.3.3.3. Required safety equipment, to include first aid kit, fire extinguisher, tow rope, two triangular reflectors, spare tire, jack, lug wrench, and flashlight.

6.3.4. For a car, the safety inspection is valid for two years. For a van, truck, or motorcycle, the safety inspection is valid for one year. The emissions test is valid for one year for all POVs.

6.3.5. In order to register motorcycles and mopeds, Commanders may require the owners/operators to successfully complete a motorcycle rider course and/or other applicable riding and skills courses.

6.4. **Insurance Requirements for Persons Stationed in Turkey:**

6.4.1. Owners of POVs must maintain at least the minimum personal liability and property damage insurance required under Turkish law. However, personnel are encouraged to obtain sufficient coverage for their own protection.

6.4.2. Insurance may be obtained from local companies. Selection of insurance companies is an individual responsibility.

6.4.3. Commanders will establish necessary controls to ensure that automobile owners maintain currently valid liability insurance policies.

6.5. **Insurance Requirements for TDY or Leave Personnel Bringing a Vehicle Into Turkey:**

6.5.1. Obtain international insurance (green card) valid in Turkey before departure for Turkey, or obtain tourist insurance at border crossing point.

6.5.2. Consider limits of liability. Information may be obtained from chief of security forces, military legal offices, or Turkish consulates located in countries outside of Turkey.

6.6. **Licensing of Operators:**

6.6.1. Any military member of the NATO Forces stationed in Turkey, or TDY in Turkey, who operates a vehicle in Turkey must possess a standard bilingual driver's permit, USAFE Form 181, **Vehicle Operator's Permit for Turkey**, which the chief of security forces issues to persons possessing valid driver's license. These bilingual permits will be the only driving permits recognized for US Forces personnel under the provisions of this instruction, with the exception of dependents. For members of NATO Forces on official orders in Turkey, a valid (current) driver's license, which is required to obtain a USAFE Form 181, is defined as a current US driver's license from any State of the Union, a valid international driver's license, or a Turkish driver's license. USAFE Form 181 may also be issued with AF Form 2293, **USAF Motor Vehicle Operator Identification Card**, as provided for in Article IV of the NATO SOFA.

6.6.2. All dependents of military members of NATO Forces and all US civilians and their dependents subject to this instruction who operate a vehicle in Turkey must possess either a valid Turkish driver's license, or an international driver's license issued by any country other than Turkey.

6.7. **Sale and Turkish Registration of Privately Owned Vehicles.** The Turkish Government establishes the procedures and requirements for the sale and registration of POVs by individuals within Turkey. These procedures and requirements are subject to change. Commanders will ensure that their Customs Liaison Office establish procedures which conform with Turkish requirements.

6.8. **Legal Speed Limits**. Unless otherwise posted, the legal speed limits for driving of passenger cars in Turkey are 31 miles (or 50 kilometers) per hour within inhabited places, and 55 miles (or 90 kilometers) per hour on the open highway. Operators of vehicles will consider road, weather, and lighting conditions as important factors in determining a safe speed.

6.9. **Accident Reporting.** The operator of any motor vehicle involved in an accident that causes injury or death to any person, or any damage to property should:

6.9.1. Immediately stop the vehicle and render reasonable assistance to any person injured in the accident. This includes taking the injured person to a physician for medical treatment if it is apparent that such treatment is necessary, or if such treatment is requested by the injured person.

6.9.2. Give name, address, and the registration number of the vehicle to any police officer who may be present, to the person injured, to the driver, or occupants of any vehicle involved in the accident.

6.9.3. Immediately report the matter to a duly authorized US law enforcement officer. If the operator is physically incapable of making the report, the owner of the motor vehicle (if not the operator), or the investigating agency will make the report.

6.9.4. Not move the vehicle unless it is absolutely necessary; *e.g.*, when there is no other vehicle to transport the injured person(s) in need of immediate medical help.

6.10. **Suspension and Revocation of Operator's Permit**. Suspension and revocation of USAFE Form 181, operators' permits are accomplished according to the provisions of applicable service instructions and directives.

JEFFREY S. PALMER, Colonel, USAF
Staff Judge Advocate

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Agreement between the Parties to the North Atlantic Treaty Regarding the Status of Their Forces, signed 19 June 1951 (NATO Status of Forces Agreement). (4 UST 1792; 199 UNTS 64) (BGB1 1961, II, 1138, 1190). Available at **http://www.nato.int/cps/en/natohq/official_texts_17265.htm?selectedLocale=en**.

EUCOM Directive 45-7, Country Regulations, 4 January 2005, HQ USEUCOM, Unit 30400, Box 1000, APO AE 09131.

Agreement, with Minutes of Understanding, between the UNITED STATES OF AMERICA AND TURKEY Implementing Status of Forces Agreement of June 19, 1951, between the Parties to the North Atlantic Treaty. Available at **http://photos.state.gov/libraries/turkey/461177/pdf/5t1465.pdf**.

Prescribed Forms

USAFE Form 181, Vehicle Operator's Permit for Turkey

USAFE Form 540, Request for Transfer of POV

USAFE Form 554, NATO Beyanname

USAFE Form 675, European Exchange Service (ESS) Beyanname (*Turkey Only*)

Adopted Forms

AF Form 1314, Firearms Registration

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

FSO—Financial Services Office

NATO—North Atlantic Treaty Organization

NATO SOFA—North Atlantic Treaty Organization Status of Forces Agreement

ODC-T—Office of Defense Cooperation, Turkey

POV—Privately owned vehicle

TGS—Turkish General Staff

UCMJ—Uniform Code of Military Justice

USCINCEUR—United States Commander in Chief Europe

USCR—United States Country Representative

USDRT—United States Defense Representative Turkey

USEUCOM—United States European Command

Attachment 2

BEYANNAME ITEMS

A2.1. Items for Beyanname:

A2.1.1. Colored Television (63 centimeter display and up)

A2.1.2. Music Set (set or by the piece-receiver, tape player, disc player, amplifier and loudspeakers)

A2.1.3. Video recorder and player

A2.1.4. Digital video

A2.1.5. Computer set (set or by the piece-processor box, monitor, printer)

A2.1.6. Air Conditioner Units

A2.1.7. Washing Machine

A2.1.8. Dryers

A2.1.9. Dish Washers

A2.1.10. Refrigerators

A2.1.11. Deep Freezers

A2.1.12. Microwave Ovens

NOTES:

1. Any item on the above list, regardless of price, must be placed on the beyanname.

2. Goods that are not on the list and are not furniture sets will be placed on the beyanname if the item's value exceeds 300 euros or equivalent foreign currency.

3. Furniture will be placed on the beyanname as "living room set," "dining room set," "bedroom set," "kitchen furniture set," and the number of pieces will be annotated in parenthesis next to the item.

4. In the event a spouse arrives more than 6 months after the member's initial arrival, the member may still import household goods into Turkey duty free with proper coordination with the Turkish Customs Directorates which will be accomplished with the help of the Customs Liaison Office.